

24NNCV00427 24NNCV00427

County: los-angeles
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Motion: PLAINTIFFS' MOTION FOR EVIDENTIARY SANCTIONS
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Case Number: 24NNCV00427 Hearing Date: July 15, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JAMES
MATYAS, et al.,

Plaintiff(s),

vs.

WEAVER
& ASSOCIATES, INC., et al.,

Defendant(s).

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CASE NO.: 24NNCV00427

[TENTATIVE]

ORDER RE: PLAINTIFFS' MOTION FOR EVIDENTIARY SANCTIONS

Dept.

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8:30

a.m.

July 15,

2026

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I.

INTRODUCTION

On June 9, 2026, plaintiff James Matyas ("Plaintiff") filed this motion for an order imposing evidentiary sanctions on defendants Weaver & Associates, Inc., Ralph Weaver, Matthew Weaver, Denise Weaver, and Dana Dattola (collectively, "Defendants") by striking their supplemental responses to Plaintiff's Special Interrogatories (Set One) and Requests for Admission (Set One), deeming Defendants' original discovery responses binding, precluding inconsistent trial testimony, and awarding Plaintiff attorney and filing fees for this motion.

Defendants filed an opposition brief on June 17, 2026.

Plaintiffs filed a reply brief on June 24, 2026.

On July 1, 2026, the Court continued the hearing to allow the parties to submit supplemental briefs. Supplemental briefs were filed on July 10, 2026.

II.

LEGAL

STANDARD

Typically, interrogatories are not preclusive in the way requests for admission are and a party, without leave of court, “may serve an amended interrogatory that contains information subsequently discovered, inadvertently omitted, or mistakenly stated in the initial interrogatory [response].” (Code Civ. Proc., § 2030.310, subd. (a).) The propounding party of an interrogatory to which an amended answer has been served may move for an order that the initial answer be deemed binding on the responding party for the purpose of the pending action. (Id., subd. (b).) The Court shall grant this motion if all of the following conditions are satisfied:

(1)

The initial failure of the responding party to answer the interrogatory correctly has substantially prejudiced the party who propounded the interrogatory.

(2)

The responding party has failed to show substantial justification for the initial answer to that interrogatory.

(3)

The prejudice to the propounding party cannot be cured either by a continuance to permit further discovery or by the use of the initial answer under Section 2030.410.

(Id., subd. (c).) The Court

shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to deem binding an initial answer to an interrogatory, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Id., subd. (d).)

III.

DISCUSSION

Plaintiff argues that Defendants should be bound to their initial responses to interrogatories because their amended responses (referred to in briefing as “supplemental” responses) contradicted their initial responses and deposition testimony. Plaintiff also argues that evidentiary sanctions should be imposed because Defendants’ initial responses are also evasive and contradictory, which have impaired Plaintiff’s ability to prepare for trial.

Plaintiff’s motion is DENIED and each individual request is addressed in further detail below. First, the Court notes that Plaintiff failed to meet and confer with Defendants before bringing this motion. This ground is sufficient to deny the motion based on Code of Civil Procedure section 2030.310(b). Second, many of Plaintiff’s complaints about Defendants’ supplemental responses to special interrogatories, upon investigation, do not reveal any purported contradiction in testimony or responses and, even if there were, Plaintiff fails to demonstrate any substantial prejudice or an inability to cure any prejudice through further discovery.

The Court disagrees with Plaintiff’s characterization of Defendants’ actions as obfuscatory or evasive and does not find a “pattern of willful discovery abuse.” The only improper action taken by Defendants is their withdrawal/amendment of admissions without first seeking leave of court. This may warrant monetary sanctions, but not an extreme measure such as evidentiary sanctions such as an order “binding” them to their initial responses. To make such an order would circumvent Code of Civil Procedure section 2033.300, which allows withdrawal or amendment of an admission with leave of court.

A.

Dana

Dattola

Response to SROG No. 1 vs. Deposition Testimony: Deny; no substantial prejudice shown.

Dattola initially stated that she was employed from 2009 to the present and later testified that she began working for the firm in 2007. Plaintiff does not show how he is substantially prejudiced by this two-year difference or that further discovery would not resolve any questions about any timeline.

Response to SROG No. 5 vs. Supplemental

Response to RFA No. 5:

Deny. Plaintiff does not demonstrate how this two-year difference resulted in substantial prejudice. Initial response was not an admission, therefore supplemental response is permitted without leave of court.

Response to RFA No. 6 vs. Supplemental

Response to RFA No. 6 vs. Deposition Testimony: No showing of substantial prejudice and initial response to RFA No. 6 was not an admission, therefore supplemental response is permitted without leave of court.

Response to RFP No. 23 vs. Special

Interrogatory No. 15:

Deny. Plaintiff claims there is an inconsistency between Dattola's claim that she did not know of any contingency bonuses attributable to Plaintiff's accounts, and her interrogatory response identifying specific years in which she knew of contingency bonuses. Defendants argue there is no true contradiction between Dattola was aware of contingency bonuses generally, without knowing whether any were attributable to Plaintiff's accounts.

B.

Denise

Weaver

Response to RFA No. 9 and SROG No. 5 vs.

Deposition Testimony: Deny;

no true contradiction. Having access to a document or being aware of it is not the same as reviewing it.

Response to RFA No. 8 vs. Supp.

Response to RFA No. 8:

Deny. No true contradiction.

Response to RFA Nos. 4 and 10: Deny evidentiary or monetary sanctions, but supplemental responses to RFA Nos. 4 and 10 are stricken sua sponte because an admission cannot be amended or withdrawn without leave of court.

Response to SROG No. 9 and Supplemental
Response to SROG No. 9: No
substantial prejudice.

RFA No. 6 vs. Response to RFA No. 5: Deny;
no true contradiction; whether accountings reflecting contingency bonuses are provided to Plaintiff is different from whether Defendant prepared or reviewed statements omitting bonuses.

C.
Matthew
Weaver

SROG No. 3 vs. Supplemental Response to
SROG No. 3 vs. Deposition Testimony: Deny; no substantial prejudice or actual contradiction between responses.

SROG No. 1 vs. Supplemental Response to
SROG No. 1: Deny; no
true contradiction.

RFA No. 1 and Supplemental Response to
RFA No. 1: Motion for
sanctions is denied, but supplemental response to RFA No. 1 is stricken.

RFA No. 15 vs. Response to SROG Nos.
17-18 and Supplemental Response to SROG No. 18: Deny, no substantial prejudice that cannot be cured by additional discovery.

SROG No. 10 v. Supplemental Response to
SROG No. 10 vs. Deposition Testimony: Deny. No contradiction.

SROG No. 16

vs. Supplemental Response to SROG No. 16: Deny. No contradiction. Initial response refers to general communication relating to contingency bonuses while supplemental responses denies communicating about any contingency bonuses due to Plaintiff.

D. Ralph Weaver

Response to SROG No. 1 v. Supplemental

Response to RFA No. 1 vs. Deposition Testimony: Deny, no substantial prejudice and additional discovery can remedy any confusion.

Response to SROG No. 3 vs. Deposition

Testimony: Deny. No contradiction.

Response to RFA No. 10 vs. Supplemental

Response to RFA No. 10:

Deny as to sanctions, but supplemental response is stricken.

E.

Weaver

& Associates, Inc.

RFA Nos. 2, 3, and 10 vs. Supplemental

Response to RFA Nos. 2, 3, and 10: Deny as to sanctions, but supplemental responses to RFA Nos. 2, 3, and 10 are stricken.

Response to RFA No. 4 vs. Supplemental

Response to RFA No. 4:

Deny, no true contradiction.

Response to RFA No. 14 vs. Supplemental

Response to RFA No. 14:

Deny as to sanctions, but supplemental response to RFA No. 14 is stricken.

Response to SROG No. 22 vs.

Supplemental Response to SROG No. 22: Deny; not a contradiction, but an addition to the initial answer.

Response to SROG No. 13 vs.

Supplemental Response to SROG No. 13: Deny; no prejudice that a continuance of discovery or

further discovery could not cure.

Response to RFA No. 15 vs. Supplemental Response to RFA
No. 15: Deny; supplementation was not prejudicial.

IV.

CONCLUSION

Plaintiff's motion for an order binding
Defendants to their initial responses to interrogatories is DENIED. Plaintiff's
motion for evidentiary sanctions is DENIED. The Court strikes Defendants'
supplemental responses to Plaintiff's RFAs, without prejudice to any future
motion seeking leave to withdraw or amend their admissions, as follows:

Denise Weaver: Supplemental Responses
to RFA Nos. 4, 10;

Matthew Weaver: Supplemental Response
to RFA No. 1;

Ralph Weaver: Supplemental Response to
RFA No. 10;

Weaver & Associates, Inc.:
Supplemental Responses to RFA Nos. 2, 3, 10, 14.

No sanctions are imposed because some
of Defendants' supplemental responses were improperly served without leave of
court and most of Plaintiff's arguments in support of this motion were
unpersuasive. Imposing sanctions on any party in these circumstances would be
unjust.

Defendants to give notice.

Dated
this 15th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

SUPERIOR COURT OF THE STATE OF
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JAMES
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CASE NO.: 24NNCV00427

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR SPOILIATION SANCTIONS

Dept.

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8:30

a.m.

July 15,

2026

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I.

INTRODUCTION

On June 9, 2026, plaintiffs James

Matyas and Eugene Robison Company, Inc. dba Oxford Risk Management & Insurance Services (collectively, "Plaintiffs") filed this motion for an order imposing issue sanctions, monetary sanctions, and an adverse inference jury instruction on defendants Weaver & Associates, Inc., Ralph Weaver, Matthew Weaver, Denise Weaver, and Dana Dattola (collectively, "Defendants").

Plaintiffs claim that sanctions and an adverse jury instruction are warranted due to “Defendants’ intentional, bad-faith destruction and failure to preserve critical financial, accounting, and database management records that document contingency bonuses paid to Defendants on Plaintiffs’ accounts.” (Notice of Motion, p. 2.) Plaintiffs request the Court: (1) instruct the jury that they may infer the destroyed financial records would have established that Defendants failed to pay Plaintiffs their 50% share of contingency bonuses as mandated by the Management Service Agreement (“MSA”), executed in 1995, (2) order that it has been established that Defendants received contingency bonuses attributable to Plaintiffs’ accounts under the MSA from 1995 to 2021, and (3) grant an award of fees and costs against Defendants and counsel of record for bringing this motion.

Defendants filed an opposition brief on June 17, 2026.

Plaintiffs filed a reply brief on June 24, 2026.

II. EVIDENTIARY OBJECTIONS

Defendants’ Objection Nos. 1 through 4 to the Declaration of Neva Cirkveni are SUSTAINED as improper opinion and characterization of evidence. The materials objected to also lack foundation and personal knowledge.

III. DISCUSSION

Spoilation of evidence in anticipation of, or in response to, a discovery request, is a misuse of discovery, as to which all discovery sanctions are available. (Victor Valley Union High School Dist. v. Superior Court (2023) 91 Cal.App.5th 1121, 1139-1140.)

Plaintiffs argue that Defendants had an obligation to preserve evidence due to the terms of MSA and that Defendants improperly

destroyed data and documents in 2007, when Defendants purportedly shredded “years’ worth of underlying physical accounting files, historical financial records, and profit-sharing data.” (Motion, p. 4.) This argument is unpersuasive because any shredding was limited to “routine destruction of client insurance files under the Insurance Code’s ten-year retention rule, and was performed before any dispute [between the parties] existed. (Opp., p. 2.) The deposition testimony attached to Plaintiffs’ counsel’s declaration reflects that contracts such as the MSA, “would not have been in that pile” and that the documents that were shredded were “client-specific documents.” (Cirkveni Decl., Ex. E, 50:18-22.)

Next, Plaintiffs claim that Defendants purposefully destroyed electronic evidence between 2021 and 2023, despite having discovered the MSA in 2017 and knowing that a dispute had arisen over the terms of the MSA by 2019. A party in possession or control of information has a duty to preserve the evidence where the party was objectively aware it would be relevant to anticipated litigation because litigation was reasonably foreseeable and probable, and more than just a potential or distant claim. (Id. at p. 1149.) One remedy for spoliation of evidence is an evidentiary inference that the party destroyed, or rendered unavailable, evidence, because it was unfavorable to that party. (Id. at p. 1139.)

These “data purges” purportedly began on April 15, 2021, when Denise Weaver extracted a “comprehensive backend duplicative of the firm’s historical transactional history”, but the extraction file was subsequently allowed to expire. Plaintiffs also claim that systematic destruction of evidence was underway when Denise Weaver executed: (1) an “Authorized User Reduction Form” on March 17, 2022, which limited access to data management platforms, and (2) a “Nexure Termination Notice Form” on October 24, 2023, which migrated data from Nexsure onto another platform, Applied Epic, without also requesting data extraction.

Last, Plaintiff claims that Defendants are further withholding documents and refusing to “release the active Applied Epic system logs.” (Motion, p. 10.) Plaintiff argues that sanctions should be imposed because Defendants refuse to execute a “standard owner release form required to unlock [the records] for production.” (Motion, p. 10.) However, Defendants argue in their opposition brief that sanctions are unwarranted because defense counsel never received any letter, email, or other

communication requesting the execution of a release form for Applied Systems or other custodians of records. Defense counsel declares that Plaintiff only demanded that Defendants stipulate to an adverse-inference instruction, not document production. (Opp., Hayden Decl., ¶¶ 4-7, Ex. 1.)

The Court is unpersuaded that these events warrant something as drastic as an adverse-inference instruction. Plaintiff provides no evidence that the 2021 data extraction file contained any relevant data from 2007 or that the Nexsure platform ever contained historical bonus records from 1995 to 2007. Defendants additionally argue, and the Court agrees, that the 2021 “data extraction”, the 2022 user-license reduction, and the 2023 migration to Applied Epic were ordinary operational decisions about a software platform, not evidence of “willful suppression” of evidence. (Opp., pp. 8-9.) Furthermore, it appears that records are available through Applied Epic but that Plaintiff has not requested Defendants’ cooperation in obtaining it and instead chose to proceed with this motion. Also, Defendants point out that documents predating 2017 have been produced, including materials from 2015-2016, which is inconsistent with the alleged “campaign” of destruction. Sanctions are additionally unwarranted because no court order has been violated. Plaintiff argues in his reply brief that the Court previously ordered Defendants to produce documents, but Plaintiff tellingly does not specify the date on which any purported order was issued. Rather, on January 28, 2026, the Court ordered Defendants to serve responses to Plaintiffs’ written discovery requests; there is no order for production and thus no court order has been violated.

IV.

CONCLUSION

Accordingly, Plaintiff’s motion for sanctions is DENIED in its entirety.

Defendants to
give notice.

Dated
this 15th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

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